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AGREEMENT

between the

AKRON BOARD OF EDUCATION

and

OAPSE LOCAL 778

OAPSE/AFSCME
AFL-CIO

Effective:

July 1, 2025 through June 30, 2028

FOREWORD

This document contains the Agreement between the Akron Board of Education and Ohio Association of Public School Employees, Local 778. This current document covers the period July 1, 2025 through June 30, 2028.

The members of the negotiating teams are pleased to present this document to you. It contains mutual understandings concerning salaries, fringe benefits and conditions of employment for the Foremen in the Maintenance, Grounds, Transportation and Printing Services Departments of the Akron Public Schools.

The understandings contained in this document will make for better staff relations and a more effective school system during the term of the Agreement. It is the objective of both parties to provide a safe and healthy environment that is conducive to a successful educational program. We are confident that the written agreements contained in this document will significantly improve the efficiency and effectiveness of all parties in meeting their daily job responsibilities.

FOR THE BOARD:

Barbara A Sykes
Board President

R Wayne Bowers II
Treasurer

Mary B. Outley
Superintendent

FOR THE UNION:

Wayne Trivelli
President, OAPSE Local 778

Taylor Schnellinger
Field Representative

Board Team:
Stacey Hodoh
Justin Miller
Debra Foulk
Tod Wammes
Christian M. Williams, Esq.

OAPSE Local 778 Team
Taylor Schnellinger
Mark A. Anderson
Jason Dickerson
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AKRON BOARD OF EDUCATION
AND
OHIO ASSOCIATION OF PUBLIC SCHOOL EMPLOYEES
LOCAL 778

ARTICLE I – RECOGNITION

1.01 This Agreement is made and entered into this 1st day of July, 2025, by and between The Akron City School District Board of Education, hereinafter referred to as the Employer, and Ohio Association of Public School Employees/AFSCME/AFL-CIO, hereinafter referred to as the Union, on behalf of OAPSE Local Union 778.

The employer recognizes the Union as the exclusive bargaining representative in respect to rates of pay, hours of employment, and other terms or conditions of employment for the following foremen:

Job Code	Job Classification
219	Foreman, Duplicating Operator
266	Foreman, Transportation
276	Foreman, Grounds
355	Foreman, Audio Visual Repair
356	Foreman, Carpenter
357	Foreman, Hardware
358	Foreman, Electrician
359	Foreman, HVAC
362	Foreman, Painter
364	Foreman, Plumber

All positions other than those listed above shall be excluded from the bargaining unit.

ARTICLE II – PURPOSE

2.01 Whereas the general purpose of this Agreement is to promote the mutual interests of the Employer and its employees and to provide for the operation of the Employer's school system under methods which will further, to the fullest extent possible, economy and efficiency of operation, protection of property and avoidance of work interruptions, the parties to this Agreement hereby agree to cooperate fully for the purpose of preventing and adjusting misunderstandings by establishing rules and minimum wage rates based on the standard of "a day's work for a day's pay."

This agreement contains mutual understandings concerning salaries, fringe benefits and conditions of employment for the Foremen in the Maintenance, Grounds, Transportation and Duplicating Departments of the Akron Public Schools.

It is the objective of both parties to provide a safe and healthy environment that is conducive to a successful educational program.

2.02 This Agreement covers only those matters specifically contained herein and supersedes: (1) all prior agreements between the Employer and the Union, including any letters of interpretation; and (2) verbal understandings and past practices on issues not covered by the Agreement.

2.03 In the event any provision of this Agreement is deemed null and void by a court of competent jurisdiction, or if any provision violates federal, state or local law, the provision or provisions so affected shall no longer be operative or binding upon the parties, but the remaining portion of the Agreement shall continue in full force and effect. Upon request, the parties shall meet to discuss items invalidated or subject to invalidation under this clause in an attempt to resolve the issue(s).

This provision shall not invalidate agreements reached by the parties on items which, under state law, they are allowed to agree upon, even though the items provide for benefits or rights which are different than those prescribed by state law.

ARTICLE III – MANAGEMENT RIGHTS

3.01 The Employer retains each and every power, right and authority to manage its operations and work force except as expressly limited or relinquished by the terms of this Agreement. The Employer reserves and retains all of the normal inherent and common law rights of an employer, even though not enumerated herein, including especially, but not limited to, those rights set forth in O.R.C. Section 4117.08 (C) (1) through (9).

ARTICLE IV – ABSENCE AND LEAVE

4.01 ABSENCE FROM WORK

Notification shall be given by the employee to his/her immediate supervisor before absence from duty, except in extreme emergency. In such cases, the absence shall be submitted within 48 hours.

Five (5) sick days shall become effective and available for use on the employee's first day of employment with the Board.

A. Accumulation

1. Each full-time employee shall be entitled to accumulate one and one- fourth (1¼) sick days for each completed month of service, to a maximum of fifteen (15) days per year.

2. Maximum accumulation of unused sick days is 425 days.

B. Transfer

Any employee who transfers from one public agency in Ohio to another shall be credited with the unused balance of his/her accumulated sick days. To receive such credit, a new employee shall present to the Treasurer a certification from the Public Agency in Ohio for which he/she most recently worked, stating the number of unused sick days credited to him/her at the time of the termination of employment.

C. Certification of Absence

All forms used for the certification of an absence shall be compatible with the terms and provisions of this Agreement.

The employee and his/her supervisor shall certify to the Superintendent the cause of the employee's absence. Such certification shall also constitute a request by the employee for authorization of absence. Approval by the Superintendent, or his/her designee, of such request shall constitute an authorization of absence from duty. The appropriate form among the following shall be completed:

- Attendance Variations Fonn (S-2j)/Electronic Reporting System
- Certificate of Health (S-2e)
- Statement of Necessity for Absence (S-2f)

The employee shall complete and return the proper forms to his/her supervisor within two (2) work days upon the employee's return.

D. Use

It is the intention of the Union and the Employer to encourage and assist employees in accumulating sick days. Recognizing that the purpose of accumulating sick days is to compensate employees during emergency health situations, both parties agree that an employee will not normally be suspended without pay or terminated for the use of accumulated sick days taken according to Board Policy, this Agreement and/or state law. Both parties also agree that excessive absenteeism will not be tolerated and may result in disciplinary action. An employee with a continuing attendance problem may be required to provide medical documentation.

If an employee has a sufficiently serious health problem, that employee may be required to apply for disability retirement within thirty (30) days of the date of a conference with a representative of the Department of Human Resources. A decision by the State Employees Retirement System denying disability retirement shall not be cause to suspend without pay or to terminate an employee.

4.02 ABSENCE COVERED BY ACCUMULATED SICK DAYS

Employees may use sick days for absence due to illness, injury, physical disability, emergency dental care, childbirth, pregnancy, exposure to contagious disease which could be communicated to other employees or to school children and for illness in the employee's immediate family: no limit. A member who adopts a child shall be entitled to use sick days for up to six (6) weeks following the date of adoption. In the event of childbirth, the non-birth parent may be entitled to use sick days for up to six (6) weeks following the date of the childbirth.

In the event an employee uses all accumulated sick days, he/she shall have the option of applying for leave under the provisions of Section 4.04 of this Agreement.

An employee shall be paid only for the number of sick days credited to or earned by such employee. Before a salary payment can be made for such absence, the employee shall submit the appropriate forms to his/her immediate supervisor.

A. Personal Illness

When an employee has been absent for more than three (3) consecutive work days because of personal illness, the Certificate of Health (S-2e) shall be filed with the Department of Human Resources immediately upon the employee's return to work. A telehealth appointment may be used to document the employee's consultation with a medical professional.

In the event that the absence is for ten (10) days or more, a Certificate of Health is to be filed at the end of each ten (10) day payroll period. Failure to file the Certificate of Health will result in delay of compensation for accumulated sick days.

The Certificate of Health shall be signed by the employee and employee's physician, and shall authorize his/her physician to release, upon request, to the Superintendent or his representative, such information as is necessary to justify the absence and/or the recovery period necessary for the employee to resume his/her duties.

B. Family Illness

For family illness, the immediate family includes husband, wife, a dependent son, a dependent daughter, any dependent person residing in the immediate household, or a father, mother, sister or brother, son or daughter who is seriously ill.

An employee shall be entitled to complete usage of accumulated sick days for serious illness or disability in the immediate family. Before payment can be made for such absence, the employee shall submit the appropriate form to his/her immediate supervisor. If such absence extends beyond three (3) consecutive work days, the employee shall also submit a Statement of Necessity for Absence (S-2f) stating that the employee's absence from duty is required.

4.03 ABSENCE OTHER THAN SICK DAYS

A. Death in the Family

1. For death, the immediate family includes father, mother, sister, brother, husband, wife, child, grandchild, father-in-law, mother-in- law, daughter-in-law, son-in-law, stepfather, stepmother, stepbrother, stepsister, stepson, stepdaughter, step-grandchild, any individual directly responsible for the rearing of the employee or any dependent person in the immediate household.

   A limit of three (3) consecutive work days, not deducted from accumulated sick days, is granted for death in the employee's immediate family, except that the Superintendent may increase the number of days if the circumstances justify authorization of additional absence with pay. Before salary payment is made for absence because of death in the employee's immediate family, the employee must submit a certification of absence in accordance with Section 4.01(C) to his/her immediate supervisor.

   Notification shall be given by the employee to his/her immediate supervisor before absence from duty, except in extreme emergency. In such cases, the claim shall be submitted no later than the second day after the employee returns to work.

2. For death, "other relative" includes a grandparent, uncle, aunt, cousin, niece, nephew and in-laws other than those described under immediate family.

   A limit of two (2) consecutive work days, not deducted from accumulated sick days, is granted for the death of other relative, except that the Superintendent may increase the number of days if the circumstances justify authorization of additional absence with pay.

   Before salary payment is made for absence because of death of other relative, the employee shall submit a certification of absence in accordance with Section 4.0l(C) to his/her immediate supervisor.

   Notification shall be given by the employee to his/her immediate supervisor before absence from duty except in extreme emergency. In such cases, the claim shall be submitted no later than the second day after the employee returns to work.

B. Jury Duty

An employee summoned to jury duty and released before 11:30 a.m. shall report to work one (1) hour after being released. An employee released after 11:30 a.m. shall be relieved of work that day.

Employees who work night shifts who are dismissed before 11:30 a.m. are expected to work their regular schedule minus the amount of time served. The time deducted is to be taken from the end of the regularly scheduled work shift.

A member receiving pay for jury duty shall retain pay received for serving to defray the expense of serving.

C. Personal Leave

1. At the beginning of each school year, each member has the option to use up to three (3) work days with pay without restriction as to the reason for the day off, to be used for Personal Leave. Such absences may be taken in one-half (1/2) day increments.

2. Personal leave may not be used to extend a holiday or vacation period, nor on the first or last days of school. Normally, personal leave will not be taken one (1) week prior to, or one (1) week after, the first day of school or the last day of school. Use of this day is further subject to the notice requirements of subsection 3 below and the limitations set forth in subsection 4 below.

3. Except in cases of an emergency, application for personal leave shall be submitted to the immediate supervisor as far in advance as possible, and no less than one (1) work day prior to the use of such leave. Personal days shall be submitted through the electronic absence reporting program for approval.

4. Not more than one (1) member may take personal leave on the same day, except that the immediate supervisor has the authority to exceed this limitation under emergency circumstances. Once an employee's personal day has been scheduled and approved, it cannot be revoked by the District except with the agreement of the employee.

5. Employees who do not use a personal day shall be paid One Hundred Dollars ($100) for that day.

D. Absence Due To Assault

Employees shall be granted up to five (5) paid days of absence due to injury resulting from a physical assault which occurs while an employee is performing his/her official duties. A written physician's statement describing the nature and anticipated duration of the disability must be submitted.

The employee shall be paid regular compensation for time lost due to an assault. If the absence extends beyond five (5) days, the employee may be required to submit to an examination by a physician designated by the Employer. The examination will be conducted at the Employer's expense. Additional time beyond the five (5) days may be authorized by the Superintendent, or his representative, after consultation with the physician who conducted the examination. Paid days granted due to assault shall not be charged against the employee's accumulated sick days.

E. Excellent Attendance

Employees shall be awarded for perfect or excellent attendance as follows:

Perfect Attendance	$500.00

Payment will be made in July by separate check.

Absences for personal days, jury duty, professional development (modification of worksite) shall not be counted when determining a member's eligibility for Excellent Attendance Incentives.

4.04 LEAVES OF ABSENCE

Leaves of absence without pay shall be granted to employees upon request for reasons consistent with Board Policy and past practice. An employee who is granted a leave of absence may purchase health care and term life insurance coverage at the employee's expense.

A. Illness Leave

Eligibility

Any employee who is unable to perform satisfactorily the duties of his/her position, because of personal illness or other disability, may be granted a leave of absence without pay for the remainder of the contract year. Such leave of absence may be renewed for an additional contract year.

Application For Leave

Application for such leave shall be made in writing to the Executive Director, Human Resources, at the employee's discretion. An application for renewal shall be made at least thirty (30) days before the expiration of the leave.

The application for such leave of absence or renewal thereof shall be accompanied by a statement from the attending physician stating the nature of the illness or disability, unless such statement is waived by the Superintendent.

Early termination of Leave

Termination of a leave of absence before its expiration date, provided the request for the termination is made in writing by the employee to the Superintendent and that the request is accompanied by a statement from the attending physician, recommending return to duty, shall be at the discretion of the Superintendent and in accordance with the needs and interests of the schools.

Application for Reinstatement

Application for reinstatement shall be made at least thirty (30) days before the expiration of a leave of absence for personal illness. Not less than ten (10) days before the termination of the leave, the employee shall submit a written statement from the attending physician, certifying that the employee has been medically examined and that he/she is or will be able to resume his/her duties with the Employer when the leave of absence expires.

The Employer may require, at the Employer's expense, an examination by a physician designated by the Employer before the employee is reassigned.

Reinstatement

If the employee's leave of absence does not exceed forty-five (45) work days, the employee shall return to the same assignment held at the time said leave commenced. If the employee's leave of absence extends to more than forty- five (45) work days, the employee shall return to the same assignment held at the time said leave commenced, if available; if not, to an equivalent assignment.

B. <u>Unrequested Leave Of Absence</u>

If an employee is unable to perform satisfactorily the duties of his/her position because of physical or other disability, or if the employee has been absent due to personal illness following the expiration of his/her accumulated sick days, the Superintendent may recommend, without the request of the employee, a leave of absence without pay for a part of the contract year, and renewals thereof, and the Board may grant such leave in accordance with the provisions of the law.

C. Dependent Care Leave

Eligibility

An employee may be granted a leave of absence without pay for the remainder of the contract year in order to care for an incapacitated member of his/her immediate family. Such leave may be renewed for an additional contract year.

Application

An application for dependent care leave shall be made in writing to the Executive Director, Human Resources, at the employee's discretion. Said request must be accompanied with a statement from the attending physician which indicates that the employee's presence, on a full-time basis, is essential. An application for renewal shall be made by April 15 of the contract year for which the initial leave was granted.

Early Termination of Leave

Termination of a leave of absence before its expiration date, provided the request for termination is made in writing by the employee and that the request is accompanied by a statement from the attending physician, recommending return to duty, shall be at the discretion of the Superintendent and in accordance with the needs and interests of the schools.

Application for Reinstatement

Application for reinstatement must be made by April 15 of the contract year in which the leave has been granted.

Upon return from a leave of absence for dependent care, the employee shall be returned to the same position that he/she held at the time said leave commenced, if available; if not, to an equivalent position.

D. Public Office

The Employer will not discipline employees for participating in partisan political activities during non-work hours as would otherwise be unlawful under O.R.C. Section 124.57.

Eligibility

Any employee who is appointed or elected to public office, subsequent to three (3) or more years of regular service with the Employer immediately prior to his/her request for leave, and who desires to return to employment at a future date, shall be granted a leave of absence without pay.

Upon written request, an employee may be granted time off--without pay--for a maximum of thirty (30) work days per calendar year to campaign for an elected office. If elected or appointed to public office, the employee shall request an assessment conference with the Employer to determine the relationship between said public office and the employee's responsibilities to the Employer. The result of the conference, and any agreement thereof, shall be placed in writing.

Any employee elected or appointed to a public office--which does not permit said employee to meet the terms and conditions of his/her employment--may request a leave of absence without pay for one (1) term of such elected position, or in the case of an appointed position, a maximum of two (2) years from the effective date of appointment.

Application for Leave

The application shall be submitted within five (5) days after the election or appointment to public office. The leave period shall be the initial term of office.

Application for Reinstatement

Application for reinstatement shall be made in writing to the Executive Director, Human Resources, at least sixty (60) calendar days prior to the expiration of the leave. Reinstatement shall be to the former position, if available, or to an equivalent position.

E. <u>Parental Leave</u>

An employee anticipating the birth or adoption of a child shall be granted a parental leave of absence upon request.

Said request shall be made in writing to the Executive Director, Human Resources, at least thirty (30) days prior to the requested effective date of the leave. The request shall be accompanied by a statement from an attending physician or an official of the adoption agency, indicating the anticipated arrival of the child.

Such leave shall be for the remainder of the contract year in which the child's arrival is to occur, unless such leave is earlier terminated as hereinafter provided. The leave may, upon the request of the employee, be extended for one (l) additional contract year.

Application for Reinstatement

Application for reinstatement may be made in writing to the Executive Director, Human Resources, by the employee at any time subsequent to the arrival of the child, and the employee shall be reinstated ten (10) days after receipt of a written request to the Superintendent. Upon returning to the school system, the employee shall be returned to the same position, if available, or to an equivalent position.

F. **Military Leave**

An employee shall be granted a leave of absence to be inducted or otherwise enter military duty in accordance with the provisions of the law.

ARTICLE V – PERSONNEL POLICIES

5.01 CALENDAR

A. The Employer shall adopt its school calendar two years in advance. The calendar shall designate: (1) work days with students; (2) work days without students; (3) paid holidays; (4) non-paid holidays; and (5) Parent-Teacher Conference days.

B. The school calendar committee represents all bargaining units recognized by the Employer. The school calendar committee shall be composed of one (1) representative for each five hundred (500) employees or fraction thereof represented by AEA; SEIU Local 1 MOT (Maintenance, Buildings, Grounds, Warehouse and Transportation Employees); Akron Association of Classified Personnel; OAPSE Educational Assistants, No. 689; SEIU Local 1 CNS (Child Nutrition Employees); OAPSE No. 778 (Foremen), and SEIU Local 1 (Safety and Security Employees).

C. Two (2) choices for the distribution of school calendar days to be negotiated annually by the school calendar committee and the administration shall be placed on a referendum ballot.

D. The school calendar adopted by the Employer shall be determined by a referendum of all full-time personnel who shall vote on the two (2) choices negotiated by the school calendar committee (the composition of which has been defined heretofore) and the administration. The complete results of this balloting shall be posted in each building.

5.02 HOLIDAYS

A. The following annual time schedule has been established for unit members: fifty-two (52) weeks, including paid holidays and vacation time (Time Schedule 522).

B. Each employee will be paid for the following thirteen (13) holidays, provided the employee is in payroll status on the last scheduled work day before and the first scheduled work day after the holiday: New Year's Day*, Martin Luther King Day, Presidents' Day, Good Friday, Memorial Day, Juneteenth* (June 19th)

Independence Day*, Labor Day, Thanksgiving Day, Thanksgiving Friday, Christmas Eve*, Christmas Day*, and New Year's Eve*.

Notwithstanding any section or portion of this contract, or any circumstances that might arise, not more than thirteen (13) paid holidays will be provided to employees on Time Schedule 522.

* Day closest to holiday if holiday falls on Saturday or Sunday.

5.03 VACATION

A. **Eligibility**: Full-time employees on a fifty-two (52) week schedule.

B. **Earning Vacation**

1. During the first year of employment, the employee shall earn vacation from the date of employment to December 31 at the rate of one (1) day per month for each completed month of service to a maximum often (10) work days.

   Vacation is taken in the period from January 1 to December 31 subsequent to the calendar year in which it was earned.

2. Vacation is earned from January 1 to December 31 each year. Each employee shall have January 1 as his/her anniversary date for computation of vacation entitlement until his/her final year of service.

3. Employees hired prior to January l, 1978 shall have an anniversary date for vacation entitlement purposes of January 1 of the year of hire.

4. Employees hired on or after January 1, 1978 shall have an anniversary date for vacation entitlement purposes, as follows:

   a. An employee having a hire date of January 1 through June 30 shall have an anniversary date for vacation entitlement purposes of January 1 of the year of hire.

   b. An employee having a hire date of July 1 through December 31 shall have an anniversary date for vacation entitlement purposes of January 1 following the year of hire.

C. VACATION SCHEDULE

Less than one year...one day per month (to 10 days)

After one year but less than five years..................................two weeks (10 days)

After five but less than fourteen years ....three weeks (15 days)

After fourteen years .... four weeks (20 days)

After fifteen years .... 21 days

After sixteen years .... 22 days

After seventeen years .... 23 days

After eighteen years .... 24 days

After nineteen years .... five weeks (25 days)

D. **General Vacation Policies**

1. Employees entitled to three (3) weeks or more vacation may take no more than three (3) weeks at one time. Vacation may be taken either in one- half (½) or whole day increments.

2. All requests for vacation will be submitted directly to and subject to the department supervisor. The supervisor will give primary consideration to department welfare in granting approval.

3. Vacation days may be carried forward into the next calendar year only with written authorization by the Executive Director, Human Resources.

4. Normally vacations will not be taken one (1) week prior to or one (1) week after the closing of school or one (1) week prior to or one (1) week after the opening of school.

5. No later than April 1 of each year the employee entitled to a vacation must submit his/her vacation schedule request to his/her immediate supervisor for approval. Vacation dates can be changed only upon approval of the immediate supervisor.

6. An employee hospitalized while on vacation may use accumulated sick days in place of vacation time.

7. Exceptions to the above procedures may be made upon recommendation of the department supervisor and approval of the Executive Director, Human Resources.

8. An employee who is in payroll status, and who is entitled to vacation days with pay when his/her contract with the Board is terminated due to resignation or retirement, shall be granted those days of vacation with pay

(not to exceed forty (40) days of earned vacation credit), provided the employee gives written notice of his/her intention to resign to the Superintendent of Schools, or his representative, at least two (2) full weeks prior to the beginning of the proposed terminal vacation, and provided the vacation days are taken before the effective date of the resignation/retirement. An employee may work through the day preceding his/her retirement date and be paid for vacation entitlement (not to exceed forty (40) days of earned vacation credit) thereafter.

9. Individuals previously employed by a political subdivision of the State of Ohio are entitled to have their prior service with any of these employers counted as service toward vacation.

5.04 GENERAL POLICIES

A. Every effort will be made by the Employer to discuss work-related procedural changes with the appropriate bargaining unit member(s), and Union representative if requested, prior to their implementation. If the employer agrees to a new provision in negotiations with another recognized bargaining representative which causes a change in this Agreement, then the Employer must secure the agreement of the Union before such change is put into effect. Employee work shifts or schedules may not be altered through negotiations with any other recognized bargaining representative. This clause does not preclude the Employer from changing employee work shifts or schedules on its own initiative to meet the needs of the school system.

B. No employee shall be requested to perform, nor shall any employee ever purposefully perform, any action that is in violation of any State Law or City Ordinance or applicable rules and regulations issued by any Federal, State or Local Regulatory Agency, Board or Commission.

C. Both parties shall exert their best efforts to protect all employees from verbal abuse and physical assault from students, visitors or Board employees while engaged in the performance of their duties. Any employee who is affected by either verbal abuse or the threat of physical assault shall report this matter to his/her supervisor in writing.

D. No employee shall be asked or be expected to advise, discipline or supervise any pupil, other than student workers.

E. The Employer shall make available periodic inservice training programs for the bargaining unit. The Employer may also elect to approve individual requests for specialized training.

F. Eight (8) hours, exclusive of lunch period, shall constitute a work shift; forty (40) hours shall constitute a work week. Any shift which begins at or after 3:30 p.m.

shall consist of eight (8) hours which shall include a twenty (20) minute paid lunch period.

G. All employees are required to report to work, unless notified otherwise by their direct supervisor or designee, for a minimum of four (4) hours when the schools are closed because of inclement weather or other public calamity. Employees shall be paid time and a half for all hours worked on such day unless teachers are requested to be on duty. The time worked on such day shall be included as time worked for the purpose of computing overtime in any week in which such day may occur.

H. An employee, who is not required to work on a day the schools are closed because of inclement weather or other public calamity, shall receive his/her regular salary for such day. Such time shall be included as time worked for the purpose of computing overtime in any week in which such day may occur.

I. Any employee required to stay beyond bis normal work schedule shall be paid for that time at the applicable rate, provided approval of such overtime is obtained from the immediate Supervisor.

J. <u>Overtime Computation</u>

1. In the computation of overtime, holidays shall be considered in the same calendar week in which they fall as eight (8) hours worked.

2. Any employees who are required to report to a work site at any time before or after their shift that is not continuous to their shift, or on any day that is not a regular work day, shall be paid a minimum show up time of two (2) hours.

3. Continuous to the shift shall be considered as work performed one (I) hour or more before and/or after the shift. Any portion worked during the first hour continuous to the shift, either before or after, the employee (s) will be paid a minimum of one-half (½) hours.

4. Time and one-half (1½) shall be paid for all hours worked by an employee:

    a. Over eight (8) hours in one (1) work day
    b. Over forty (40) hours in one (1) calendar week
    c. On Saturdays and Sundays
    d. On Holidays approved by the Board

5. Compensatory Time

    a. Employees who are eligible for overtime compensation may, with mutual agreement between the employer and the employee, elect to receive compensatory time off in lieu of overtime pay.

b. Accrual Rate

Compensatory time shall accrue at the rate of one and one-half (1.5) hours for each hour of overtime worked.

c. Maximum Accrual

Employees may accrue a maximum of 40 hours of compensatory time. Any overtime worked beyond this limit shall be paid at the applicable overtime rate.

d. Use of Compensatory Time

(1) Employees must request the use of accrued compensatory time off a minimum of 24 hours in advance. Such requests shall not be unreasonably denied, provided that operational needs allow.

(2) Compensatory time shall be used in increments of no less than one (1) hour.

e. Payment for Unused Compensatory Time

Upon separation from employment, any unused compensatory time shall be paid out at the employee's current hourly rate.

f. Expiration of Compensatory Time

Any unused compensatory time must be used within the calendar year from the date it is earned. Unused time that is not used within the designated period shall be paid out.

g. Compliance with Applicable Laws

This provision is subject to the Fair Labor Standards Act (FLSA) and any applicable federal, state, or local laws governing compensatory time.

K. <u>Vacancies</u>

1. In filling a vacancy, Civil Service procedures shall be followed.

2. All management approved vacancies shall be filled within thirty (30) work days upon receipt of a valid list from Civil Service.

L. Vehicle Accidents

Establish a procedure to follow when there is an accident with a Board vehicle.

5.05 ASSIGNMENT OF WORK

A. The work of the bargaining unit shall be determined by the Employer. The Employer reserves the right to modify the scope and the nature of the work assigned to bargaining unit members. All job description changes will be reviewed and discussed with the Union prior to implementation.

Responsible Individual

B. Appropriate management personnel, including those individuals temporarily assigned in a foreman's absence, may perform any and all work which is considered bargaining unit work.

C. Each foreman shall recommend to the appropriate department head the person(s) who shall serve as a responsible individual in the foreman's absence within that area. The Employer shall have final approval on all selections.

5.06 PROBATIONARY PERIOD

A. There shall be a probationary period of ninety (90) days to allow the Employer to determine the fitness and adaptability of any employee newly assigned to a bargaining unit position to do the work required. During such time, the employee shall have no seniority rights, and the evaluation of his ability to do the work required, and any decision regarding discipline, discharge or layoff, for any reason, shall not be subject to the grievance or arbitration procedures set forth in this Agreement. Employees retained beyond this ninety (90) day probationary period shall have their system seniority computed as of their date of hire, their job classification seniority computed as of their latest date of entry into the specific job classification.

B. Any non-bargaining unit person currently employed by the District who takes an authorized unpaid leave of absence from their current position in order to be promoted to a bargaining unit position and who does not satisfactorily meet the requirements of that position during the probationary period, shall have the right to return to his previous job with the District consistent with the terms of their authorized unpaid leave of absence.

C. The seniority of every employee, after he/she successfully satisfies the probationary period of his/her job, shall be considered continuous until he/she:

1. Resigns
2. Retires
3. Is laid off for a period exceeding two (2) years; or
4. Is discharged for cause

5.07 PERSONAL TRANSPORTATION

A. The Board has the right to assign and reassign Board-owned vehicles within the Akron Public Schools. All Board vehicles will be assigned to departments as needed. All employees are required to use Board owned vehicles during the workday. Use of personal vehicles during the workday for conducting Board business is prohibited unless given written permission by the Director of Facilities Services or designated supervisory staff member. Employees may drive their Board-assigned vehicle to and from their home and work with the approval of the Director of Facilities Services or his/her designee.

B. All employees driving Akron Public Schools owned vehicles shall be covered with liability insurance to cover property damage and personal injury for accidents. Said insurance shall be purchased and paid for by the Employer.

C. Employees in this bargaining unit shall be reimbursed for driving their personal vehicles for official business, in accordance with the following rate; the established I.R.S. amount in effect as of July 1, which shall be the rate for the ensuing fiscal year which rate shall not be decreased in subsequent fiscal years.

5.08 PERSONNEL FILES

A. An employee's personnel file shall be open, upon request, for inspection by the employee. The employee may have a representative of the Union present while he/she reviews the file. The Department of Human Resources must be notified by the employee of the request to review the file at least twenty-four (24) hours in advance.

B. An employee shall receive a copy of any derogatory material before it is entered into his/her file. The employee shall sign the file copy to indicate that he/she has received a copy of the material in question. The employee's signature does not necessarily show that he/she agrees with the contents of the material.

C. An employee shall have the right, at any time, to respond to the accuracy of any derogatory material placed in his/her personnel file. If an answer is written, it shall be attached to, and become part of, the material on file. If the material is proven false, said material shall be removed from the personnel file. The Department of Human Resources shall notify the employee's supervisor of such action.

D. Anonymous letters or materials shall not be placed in a member's file nor shall they be made a matter of record.

E. A record shall be kept of all persons, other than Department of Human Resources staff, who review a personnel file.

5.09 NO DISCRIMINATION

A. There shall be no discrimination by either the Employer or the Union against any employee because of race, color, religion, sex, age, national origin, ancestry, or handicapped status

B. There shall be no discrimination, restraint, intimidation, or coercion by either the Employer or its representatives or the Union or its representatives against any employee because of his membership or non-membership in the Union, or because of his participation or refusal to participate in Union membership or activities. There shall be no intimidation or coercion of employees into joining the Union or continuing their membership therein, nor shall there be any interference with the right of employees to become or continue as members of the Union.

C. No employee shall be adversely treated by the Employer or the Union because of the exercise of the right to freedom of speech or any other constitutionally guaranteed right.

D. Nothing in this section is intended to provide a means for any employee to be disrespectful, discourteous, insubordinate and/or abusive to any other employee of the Board.

E. It is understood that wherever in this Agreement employees or jobs are referred to in the masculine gender, it shall be recognized as pertaining to both male and female employees.

5.10 DISCIPLINE

A. The Employer shall have the right at any time to promulgate and enforce rules and regulations for employee conduct and all bargaining unit members shall be subject to such rules and regulations. The Employer may also impose discipline for misconduct not recited in said work rules, but no employee shall be disciplined (e.g., reprimanded, suspended with or without pay, demoted or discharged) without just cause.

B. When an employer representative desires to meet with any employee for disciplinary purposes, he/she shall notify the employee of the time, place and purpose of the meeting with a minimum of two (2) work days notice. Conferences for disciplinary purposes or reprimands shall be in private. An employee may request Union representation to attend the meeting if he/she so desires. Conferences between an employee and his/her first or second rater to discuss an evaluation are not disciplinary conferences.

C. The Employer may impose reasonable rules on the length of the conference and the conduct of the participants.

D. If the Employer determines that the employee's continued employment prior to the conference poses a danger to any person or property or a threat of disrupting operations, the Employer may suspend the employee for up to three (3) days with pay pending the disciplinary conference.

E. An employee who has been arrested for a criminal violation may be suspended, with pay, pending a plea of guilty or the employee is found guilty by a trial court of competent jurisdiction. This will not prohibit the termination of such employee, nor will it prohibit suspensions without pay for just cause.

F. If the employee is to be suspended without pay and indicates at the disciplinary conference the intent to file a Civil Service appeal, the suspension shall not be served until ten (10) days have elapsed or the appeal is heard. If a timely appeal is not filed, the suspension shall be served after the tenth (10th) day.

G. The Employer and the Union acknowledge and agree that the Executive Director and/or his designee from the Department of Human Resources have full authority, as representatives of the Board, to impose discipline upon employees including, but not limited to, termination.

5.11 STAFF REDUCTION

A. If it becomes necessary to reduce the number of bargaining unit personnel, Civil Service Rule 11 (City of Akron) shall apply.

B. Employees now in the combined classifications shall have first right to return to their previous classifications if re-activated.

C. If any shops are to be combined, the most senior Foreman, if qualified, in the affected departments shall be placed in the new combined position.

ARTICLE VI – GRIEVANCE PROCEDURE

6.01 An aggrieved person is an employee having a grievance. A grievance is defined as an alleged violation, misinterpretation or misapplication of any of the provisions of this negotiated Agreement.

6.02 The purpose of the grievance procedure is to secure at the lowest possible level, proper solutions to grievances.

6.03 The employee will attempt to resolve a potential grievance by discussion with the department head or his designee.

6.04 When any grievance arises, there shall be no interruption of work on account thereof, but the same shall be settled as promptly as possible in the following manner:

Step 1

If the written grievance is not filed within fifteen (15) work days after the aggrieved person knew, or should have known, of the event or condition upon which it is based, the grievance shall be considered waived. The grievance shall be filed with the employee's department head with a copy to the Department of Human Resources.

The grievance must be in writing and must state the provision (s) of this Agreement which the Union or grievant alleges the Employer has violated, and the specific nature of the violation. The department head or a designee and the grievant shall meet within five (5) work days of receipt of the written grievance to resolve the grievance. A response to the grievance shall be provided within ten (10) work days after the date of presentation in such written form. If the response is not appealed to Step 2 within ten (10) work days, the grievance shall be considered settled on the basis of the response and shall not be eligible for further appeal.

Step 2

In the event no satisfactory settlement of the grievance is arrived at in Step 1 of this procedure, the employee may appeal the grievance by written request to the Executive Director, Human Resources, or his designee, who shall meet with the aggrieved person within ten (10) work days after receipt of the written request. A written response shall be provided not later than ten (10) work days after the date of such meeting unless by mutual agreement a different date for disposition is agreed upon.

Step 3

The President may, within fifteen (15) work days after receipt of the Level II response, notify the Executive Director, Human Resources or his/her designee, of the intent to submit the grievance to arbitration, or by mutual agreement of the patties, submit the issue (s) to grievance mediation. Submission of an issue to grievance mediation shall toll the timelines for arbitration. The parties will attempt to identify joint stipulations of facts and issues for submission to mediation or arbitration.

Grievance mediation procedures shall be as follows:

1. The parties shall mutually agree to a panel of three (3) mediators on an annual basis, July 1 through June 30.

2. A mediator, from the panel, shall be selected on a rotating basis depending upon availability to hear grievances.

3. The mediator shall schedule a meeting within five (5) work days of the receipt of a referral. The mediator shall utilize any procedures acceptable to the parties to attempt to reach a resolution of the grievance.

4. The mediator, at the conclusion of the mediation meeting, shall issue an oral opinion on the resolution of the grievance which, if acceptable, may be memorialized by the parties.

5. If the grievance remains unresolved following mediation, the Board, the President, or designee, will notify the other party within five (5) work days and may immediately submit the grievance for arbitration under the steps provided in this section.

6. The comments and opinions of the mediator, and any settlement offer put forth by either party, shall not be admissible in any subsequent arbitration of the grievance, nor be introduced in any future grievance proceedings.

Step 4

In the event the grievance is not resolved at Step Two or Three, the Union or the Employer may within fifteen (15) work days after receipt of the Step Two or Three response, notify the other party of its intent to submit the grievance to arbitration and request a list of seven (7) arbitrators from the American Arbitration Association. If the response is not appealed to Step Four within fifteen (15) work days, the grievance shall be considered settled and not eligible for arbitration. When the list is received, either party may reject the list and request the American Arbitration Association to supply a second list of seven (7) names. Within five (5) work days from the receipt of the final list, an arbitrator should be selected by the Executive Director, Human Resources, and the Local Union President or their designees, by alternately striking names from the list. A coin flip will be used to determine the order of striking arbitrator.

6.05 The jurisdiction of the arbitrator shall be limited to the interpretation of the written provisions of this Agreement.

6.06 The arbitrator shall make no award resulting in a change, modification, subtraction, or addition to this Agreement, and shall confine himself/herself strictly to the information submitted in the hearing, or post-hearing briefs, the evidence before him and the terms of the Agreement.

6.07 Separate grievances may not be joined in one arbitration proceeding except by mutual agreement of the parties.

6.08 Each party shall bear the cost of presenting its case. The arbitrator's fees and expenses shall be divided equally between the Employer and the Union.

6.09 The arbitrator shall report his/her recommendation to the parties as expeditiously as possible. Thereupon, each party shall accept or reject the arbitrator's recommendation within fifteen (15) work days by official action.

6.10 In order that grievances may be processed as rapidly as possible, the number of days indicated at each level are maximum. Every effort shall be made to expedite the procedures; however, the time may be extended by mutual agreement of both parties.

6.11 A concerns committee shall be created in the interest of settling complaints before they become grievances. The committee shall consist of Union officials up to a maximum of four (4) persons, as identified by the Union, and any staff required by the Employer. The committee shall meet as needed.

6.12 The aggrieved person or persons may be represented at all levels of the grievance procedure by themselves and/or a Union representative. If an employee represents himself, the Union shall have the right to be present at the grievance hearings to insure compliance with the contract.

ARTICLE VII – RIGHTS OF UNION

7.01 MEETINGS AND CONFERENCES

A. Up to ten (10) days with pay per year may be utilized by employees elected to represent the Union or chosen to serve on programs or in any official capacity at Union meetings, conferences, conventions or to perform Union duties.

B. A written notice specifying the names of the employees attending the conferences must be furnished by the Union to the Executive Director, Human Resources, or his designee, two (2) weeks in advance of the period desired. Any other use of these days requires prior verbal notice and must be documented within two (2) days thereafter, specifying the names of the employees and the number of days used.

C. Any use of days under this section shall be subject to the usual Akron Public Schools certification and authorization procedures related to absence.

7.02 USE OF SCHOOL MAILS

The Union shall be authorized to use the “pony” mail system for official Union matters pertaining to employees.

7.03 UNION BUSINESS

The Union may conduct orientation of new members and Union business, other than membership meetings, on school property during the hours of employment, provided prior approval has been obtained from the Executive Director, Human Resources, or his/her designee. The conduct of such business shall not interfere with the operation of the Akron Public Schools or the City of Akron or hinder any employee's scheduled work. When requested by an employee, authorized Union representatives may visit work sites provided prior approval has been obtained.

All requests for facility use must comply with the procedures to be developed for the new Community Learning Centers.

7.04 RELEASE TIME FOR UNION STEWARDS

The Executive Director, Human Resources, or his/her designee, may authorize release time for a steward to visit a work site when requested by an employee to attempt to resolve a grievance that is of an emergency nature.

7.05 Any changes in classifications shall be discussed with the Union before being submitted to Civil Service.

7.06 DUES CHECK-OFF

A. The Union shall notify the Treasurer in writing in advance of any change in the dues. The Employer shall deduct dues from each pay of each member of the Union who has authorized dues deductions. The Employer shall transmit to the Union, prior to the end of each month, all monies withheld during that month along with an accounting as to each amount withheld and from whom it was deducted.

B. Employees may request deductions at any time during the dues deduction period.

Payroll deductions authorization for periodic dues shall be continuous from year to year.

If a valid authorization form is not on file with the Employer, no deductions will be made from the paychecks of the employee in question.

C. Request for withdrawal shall be in accordance with the procedure listed on the membership application signed by the employee. Dues deduction authorization may not be revoked at any other time or in any other manner except as provided in the OAPSE membership application signed by the employee. Notice of withdrawal shall be sent to the OAPSE State Treasurer’s Office; 6805 Oak Creek Drive, Columbus, OH 43229 Attn: Membership Department. OAPSE will notify the school district treasurer when the dues deduction authorization is properly withdrawn by the employee.

D. The Union shall defend and indemnify the Board and its Officers, Members, Agents, Employees and Assignees in both their Individual and Official capacities and hold them harmless against any and all claims, demands, suits, damages, losses, or other forms of liability, including but not limited to any claims brought by a bargaining unit member alleging the Board withheld union dues without the member's consent, and any attorney's fees and expenses that may arise out of or by reason of any action taken by the Board, its Officers, Members, Agents, Employees and/or Assignees for the purpose of complying with any of the provisions of this Article or in reliance on any list, notices, employee consent cards, or assignments furnished by the Union or its officers or agents under any such provisions. The Union shall retain control of and appointments of Legal Counsel for defense and indemnification purposes.

7.07 AFSCME PEOPLE

The employer agrees to deduct from the wages of any employee who is a member of the Union a PEOPLE deduction as provided for in a written authorization. Such authorization must be executed by the employee and may be revoked by the employee at any time by giving written notice to both the employer and the Union. The employer agrees to remit any deductions made pursuant to this provision promptly to the Union together with an itemized statement showing the name of each employee from whose pay such deductions have been made and the amount deducted during the period covered by the remittance. The union agrees to indemnify the employer for any claims, demands, suits and any other forms of liability incurred as a result of the implementation and enforcement of this provision.

7.08 Within ninety (90) days of both parties ratification of this agreement, all bargaining unit members shall forward to the Board all necessary information in order for their payroll to be deposited to an accredited financial institution of the employee's choice.

ARTICLE VIII – SCALE OF WAGES

8.01 SALARY SCHEDULE

A. The Employer agrees to pay employees covered by this Agreement not less than the amount stipulated on Step 0 for their positions in the negotiated salary schedules which are approved by the Board and included in the Schedule of Salaries. The salary schedules are attached to this Agreement. Pay dates for employees shall be every ten (10) work days or two (2) calendar weeks as established annually by the Treasurer's Office.

The pay structure shall be computed by dividing the annual salary by the job code's total number of work days and holidays for the year, as specified in the Schedule of Salaries.

B. The total annual salary or salary per pay period of each employee shall be payable by the Employer in two (2) parts: (1) deferred salary and (2) cash salary. An employee's deferred salary shall be equal to that percentage of said employee's total annual salary or salary per pay period which is required by the School Employees Retirement System (SERS) to be paid as an employee contribution by said employee and shall be paid by the Employer to SERS on behalf of said employee as a "pickup" of the SERS employee contribution otherwise payable by said employee. An employee's cash salary shall be equal to said employee's total annual salary or salary per pay period less the amount of the "pickup" for said employee and shall be payable, subject to applicable payroll deductions, to said employee. The Employer's total combined expenditures for employees' total annual salaries or salaries per pay period otherwise payable under this Agreement as amended (including "pickup" amounts) and its Employer contributions to SERS shall not be greater than the amounts it would have paid for those items had this provision not been in effect.

The Employer shall compute and remit its Employer contributions to SERS based upon total annual salary or salary per pay period, including the "pickup." The Employer shall report for Federal and Ohio Income Tax purposes as an employee's gross income said employee's total annual salary or salary per pay period, less the amount of the "pickup." The Employer shall report for municipal income tax purposes as an employee's gross income said employee's total annual salary or salary per pay period, including the amount of the "pickup." The Employer shall compute income tax withholding based upon gross income as reported to the respective taxing authorities.

The "pickup" shall be included in the employee's total annual salary or salary per pay period for the purpose of computing daily rate of pay, for determining paid salary adjustments to be made due to absence, or for any other similar purpose. The "pickup" shall apply to all payroll payments made after the adoption of this Agreement.

8.02 SALARY PROVISIONS

The following salary provisions will be applied in establishing the salary rate for employees:

A. <u>Increments</u>

A new employee shall be eligible for annual increments on the following schedule:

1. An employee hired between July 1 and December 31 shall be eligible for a full increment on July 1 of the following year.

2. An employee hired between January 1 and June 30 shall not be eligible for an increment on July I of the year employed.

B. Longevity Adjustments

1. An employee's years of service for longevity pay purposes will be calculated on full-time, continuous, complete years of service with the Board.

2. Years of service for longevity pay shall be calculated as follows:

   a. An employee hired between July 1 and December 31 shall have an employment date for longevity of January 1.

   b. An employee hired between January 1 and June 30 shall have an employment date for longevity of July 1.

   c. Leaves of absence approved by the Board shall count as continuous service for longevity pay.

3. Unit members eligible for longevity pay shall receive longevity pay in accordance with the following schedule (longevity amounts are not cumulative), effective as indicated:

   Effective July 1, 2020

after 16 years	-	10% of maximum for employee's job code
after 20 years	-	11% of maximum for employee's job code
after 24 years	-	12% of maximum for employee's job code
after 27 years	-	13% of maximum for employee's job code
after 30 years	-	14% of maximum for employee's job code

C. The Akron Board of Education agrees to the following condition of settlement with OAPSE Local 778 effective July 1, 2025 through June 30, 2028.

Effective July 1, 2025, a raise of 3.0% (retroactive)

Effective July 1, 2026, a raise of 2.0%

Effective July 1, 2027, a raise of 3.0%

ARTICLE IX – FRINGE BENEFITS

9.01 MEDICAL INSURANCE

Hospital, Surgical and Major Medical Insurance, and Prescription, Vision, Dental and Term Life Insurance shall be provided to full time members only unless specified otherwise hereunder.

A. Hospital, Surgical and Major Medical Insurance

Hospital, Surgical and Major Medical Insurance shall be provided as follows:

July 1, 2025

Wellness participant member paying eight percent (8%) (not to exceed $87.41 for single coverage and $219.68 for family coverage) of the contracted premium per month for the coverage in which he or she is enrolled (single or family) and shall not exceed nine percent (9%) of any increase in the Board's contracted premium.

Non-Wellness participant member paying fourteen percent (14%) (not to exceed $152.96 for single coverage and $384.45 for family coverage) of the contracted premium per month for the coverage in which he or she is enrolled (single or family) and shall not exceed nine (9%) of any increase in the Board's contracted premium.

July 1, 2026

Wellness participant member paying eight percent (8%) (not to exceed $95.27 for single coverage and $239.46 for family coverage) of the contracted premium per month for the coverage in which he or she is enrolled (single or family) and shall not exceed nine percent (9%) of any increase in the Board's contracted premium.

Non-Wellness participant member paying fourteen percent (14%) (not to exceed $166.73 for single coverage and $419.05 for family coverage) of the contracted premium per month for the coverage in which he or she is enrolled (single or family) and shall not exceed nine (9%) of any increase in the Board's contracted premium.

July 1, 2027

Wellness participant member paying eight percent (8%) (not to exceed $103.85 for single coverage and $261.01 for family coverage) of the contracted premium per month for the coverage in which he or she is enrolled (single or family) and shall not exceed nine percent (9%) of any increase in the Board's contracted premium.

Non-Wellness participant member paying fourteen percent (14%) (not to exceed \$181.73 for single coverage and \$456.76 for family coverage) of the contracted premium per month for the coverage in which he or she is enrolled (single or family) and shall not exceed nine (9%) of any increase in the Board's contracted premium.

The contracted equivalent paid by members from 07/01/25 through 06/30/28 shall not apply to an increase in the Board's contracted equivalent for that year in excess of nine percent (9%).

To be included as a wellness participant, the qualifying member must meet the wellness program requirements as defined in Section 9.02.

Member deductibles for major medical insurance shall be as follows:

In Network		Out of Network	
Single	Family	Single	Family
\$400	\$800	\$800	\$1,600

B. Preferred Provider Organizations

The Board shall provide a PPO Program. The Board may implement a PPO plan with different deductibles and/or co-insurance levels in addition to the plan as outlined in Section (A)(2) above. The employee contributions for any additional PPO plans offered to employees will be at the same percentage levels as outlined in Section 9.0l(A). The Board shall make any additional PPO plans available to eligible members during an Open Enrollment period.

C. Spousal Enrollment

If an employee's spouse is eligible to participate, as a current employee or retiree in group health insurance and/or prescription drug insurance available at the spouse's workplace or sponsored by his/her employer or any public retirement plan, the spouse must enroll in such workplace or employer (or public retirement plan) sponsored group insurance coverage(s).

Upon the spouse's enrollment in any such workplace or employer (or public retirement plan) sponsored group insurance coverage, that coverage will become the primary payor of benefits, and the coverage sponsored by the Board of Education will become the secondary payor of benefits.

Any spouse who fails to enroll in any group insurance coverage sponsored by his/her workplace or employer or any public retirement plan, as required by this Section, shall be ineligible for benefits under such group insurance coverage sponsored by the Board of Education.

Every employee whose spouse participates in the Board of Education's group health insurance coverage and/or prescription drug insurance coverage shall complete and submit to the Board of Education, upon request, a written certification verifying whether his/her spouse is eligible to participate in group health insurance coverage and/or prescription drug insurance coverage sponsored by the spouse's workplace or employer or any public retirement plan. If any employee fails to complete and submit the certification form by the required date, such employee's spouse will be removed immediately from all health and prescription drug insurance coverages sponsored by the Board of Education. Additional documentation may be required.

If the employee submits false information the employee may be subject to disciplinary action by the Board, up to and including termination of employment.

*Premium is defined as Funding Rates

D. **<u>Prescription Insurance</u>**

The Board shall provide a Family Coverage program of prescription insurance based upon the following table of deductibles and out-of-pocket maximums:

	Retail	Home Delivery (90-day supply)
Generic	$10	$20
Formulary	$30	$60
Non-Formulary	$60	$120
Specialty	$100	$200

Step Therapy, Preferred Specialty Management, and Prior Authorization with additions shall be in effect.

The prescription insurance annual out-of-pocket maximum shall be Five Thousand Dollars ($5,000.00).

E. **<u>Dental Insurance</u>**

The Board shall provide, at no expense to members, a dental insurance plan for members and their dependents. An enhanced dental option will be made available with the employee paying the difference between the cost of the basic dental and the cost of the enhanced dental. (See Appendix A)

F. **<u>Vision Insurance</u>**

An eye care insurance program shall be provided, at Board expense, for members and their dependents. Such coverage shall include:

1. 100 percent of all usual, customary, and reasonable charges for annual routine examination and testing, less a $5 deductible.

2. 100 percent of all usual, customary, and reasonable charges for lens and frame combinations on an annual basis, up to a maximum of $120, less a $15 deductible.

3. $105 maximum annual benefit for contact lenses when such are for non-major corrective and/or cosmetic purposes.

An enhanced vision option will be made available to all employees with the employee paying the difference between the cost of the provided basic vision plan and the cost of the enhanced vision plan.

(See Appendix A)

G. Section 125 Flexible Benefit Plan

Effective January l, 2018, and for each calendar year for the duration of the contract, the Board shall make available two additional benefits that may be elected under the Cafeteria Plan that will be subject to IRS rules governing these benefits.

1. Health Flexible Spending Account

   Employee may choose any amount of Medical Care Expenses reimbursement under the General-Purpose Health FSA subject to the current maximum salary reduction limit set by IRS and indexed annually for cost of living.

   The amount that may be carried over to the following calendar year is equal to the lesser of (1) any unused amounts from the immediately preceding Plan Year or (2) the IRS maximum carryover amount. Unused amounts relating to a health FSA may not be cashed out or converted to any other taxable or nontaxable benefit.

2. Dependent Care Benefit

   Employee may choose any amount of Dependent Care Expenses reimbursement under the DCAP, subject to the maximum reimbursement amount and requirements set by IRS Section 125 Plan Document. Set to a maximum not to exceed the applicable IRS limits.

H. Insurance Opt-Out

Members may elect to “opt-out” of the Board-provided hospitalization and major medical insurance coverage. A member who elects to opt-out shall be compensated as follows:

1. An employee whose spouse is also an Akron Public Schools employee, and is eligible for group health benefits as provided by the Board, is not eligible to participate in the “opt-out” program and shall not be eligible for any “opt-out” payments.

2. An employee who can show proof of other insurance coverage may elect not to participate in coverage as offered by the Board. The employee shall be compensated in the amount of $2,500.00, less appropriate taxes, per year at the end of an entire year for which he/she did not have coverage.

3. Employees may elect to “opt-out” of Board-provided coverage during an approved open-enrollment period, within thirty (30) days of eligibility for benefit coverage and/or within thirty (30) days from a qualifying life event change (i.e., marriage, loss of coverage from the other source).

4. Members may elect to opt-out of the insurance program during the annual enrollment period for the succeeding calendar year.

I. Employee Assistance Program

An Employee Assistance Program shall be made available.

9.02 WELLNESS PLAN

The District will provide a Wellness Program designed to improve the health of the District employees and to have an impact in both short-term and long-term projected savings in health insurance costs.

In order for an employee to qualify for the Wellness Program reduced monthly premium he/she must fully participate by completing biometric testing and a health risk assessment questionnaire. Employees may also earn the Wellness Program discount by voluntary participation in the District’s primary healthcare program.

The Health Care Benefits Advisory Committee shall make recommendations to the Superintendent for continued and/or additional programs offered to employees as part of the Wellness Program.

Premium is defined as Funding Rates.

9.03 HEALTH BENEFITS ADVISORY COMMITTEE

The Superintendent shall maintain a Health Benefits Advisory Committee. The composition of the Committee shall include: five (5) members of the administrative staff appointed by the Superintendent; the President or his designee; and bargaining unit members appointed by the respective unit presidents on the basis of one (1) member for every five hundred (500) members or fraction thereof represented by the bargaining unit.

The purpose of the committee is to allow joint consultation on matters concerning wellness program initiatives, hospitalization, major medical, prescription, dental, vision, and term life insurance coverage.

Any Health Benefits Advisory Committee member organization may retain, at its own cost and for its own purposes, a health care consultant who may attend Committee meetings.

Such consultation shall include, but is not limited to: monthly monitoring of all plan costs, including claims; quarterly reviews to insure effective and efficient fringe benefit expenditures; quarterly reviews of plan performance objectives; and, annual reviews of coverage options and utilization studies and claim audits.

The committee shall determine its own meeting schedule, and shall make annual recommendations to the Superintendent regarding any aspect of the fringe benefits package.

The Health Benefits Advisory Committee shall meet regularly during the term of this Agreement. It will have the authority to review data in one or a combination of the following areas: prescription co-pays, mandatory mail-in for maintenance drugs, office visit co-pays, single and family annual deductibles and monthly premiums (in dollar amounts). The Committee, by consensus, may expand the list of areas. The Board’s health care consultant shall participate in the meetings and shall provide estimates of cost savings to the Committee based on possible changes to the plan. The consultant shall provide the committee with data supporting the estimated savings as well as other information s/he may be expected to routinely keep in her/his capacity as the Board's health care consultant.

9.04 TERM LIFE INSURANCE

The face valuation of the policy will be one and one-fourth (1¼) times the employee’s annual salary, rounded to the nearest $1,000.00. The annual salary is defined as the basic contract rate not including supplemental contracts or other additional payments.

Employees shall be permitted to purchase additional term life insurance for themselves, their spouses, and their dependents subject to approval of the carrier. The cost to the employee shall be the rate charged the Board by the carrier. There shall be an annual enrollment period for purchases of such term life insurance. Payment for the insurance shall be through payroll deduction.

9.05 TAX SHELTERED ANNUITIES

The Employer shall provide a reduction of salaries to all employees who wish to participate in a tax sheltered annuity program. The various annuity carriers shall not be permitted to solicit individual employees during the work day or on Board property. The Board and the Treasurer shall assume no obligation, financial or otherwise, arising out of any payroll deduction plan.

9.06 SEVERANCE PAY

The Employer shall provide severance pay for those employees who retire from the Akron Public Schools under service provisions of the School Employees Retirement System. Excluded from this benefit shall be any employee who is discharged or who is convicted of a felony.

A. Such pay shall be determined as follows:

1. An employee who qualifies for severance pay shall receive twenty- five percent (25%) of said employee's accumulation of unused sick days.

2. For the purpose of this computation, such accumulation shall not exceed 425 days.

B. An employee shall receive one (1) day of severance pay credit for each year said employee had perfect attendance.

C. Sick day accumulation for severance pay computation shall only include those days earned as an employee of the Akron Public Schools.

D. Perfect attendance for severance pay shall be defined as the employee’s non-use of sick days between July 1 and June 30 of each year.

E. Upon applying for severance pay benefits, members shall furnish to the Board a copy of their initial retirement check from the School Employees Retirement System. Members shall elect (l) to receive severance pay within two weeks after submitting their application to the Treasurer, or (2) deferring severance payment until the first payroll period of the next calendar year. Members are advised to consult their tax advisor concerning any tax implications related to selecting either option.

F. In the event of the death of a member, the employer agrees to pay severance benefits to the member's estate regardless of years of service.

9.07 THEFT AND VANDALISM

The Board agrees to establish a Theft and Vandalism Fund in the amount of $500.00. This fund shall be maintained annually at the beginning of each school year at the above stated amount.

Members may make application to the Theft and Vandalism Fund for reimbursement of any personal insurance deductibles resulting from claims submitted for job-related theft and/or vandalism. Members may also apply for reimbursement for any documented job-related theft or vandalism that has been submitted under an insurance policy and denied coverage under a specific exclusion

Application for reimbursement shall be made to the Office of Staff Relations, Department of Human Resources, which shall authorize payment through the Treasurer's Office. Documentation of the deductible payments shall be submitted with the application for reimbursement. In the case of a claim specifically excluded by the member's insurance policy, a statement from the insurance company stating the exclusion shall be submitted with the application.

In addition to theft and vandalism, the fund may be used to reimburse any property loss suffered by a member resulting from circumstances beyond the member's control. Questions concerning the appropriateness of reimbursement under these circumstances shall be decided by the Staff Relations Office and Local 778 President.

Reimbursement shall be made to members each year only so long as the fund is not depleted.

9.08 CLOTHING ALLOWANCE

A. Purpose and Applicability

The Board provides employees with a clothing allowance to obtain clothing that is clean, neat and professional in appearance and appropriate for the duties of the position held by the employee.

B. Clothing Allowance Amount

The Board shall provide each employee with an annual clothing allowance of Seven Hundred Fifty Dollars ($750.00) each contract year for the purchase of shirts, pants, jackets, coveralls, boots, gloves, and any other items of clothing to be used in the performance of their job duties. Such allowance may be expended by the employee under a standing blanket purchase order issued by the Board through a Board-approved vendor. Employees must supply the clothing purchase receipt from the vendor to their supervisor to track the employee's use of their annual clothing allowance.

C. **Maintenance and Care**

Employees must keep clothing purchased with the clothing allowance clean and in good condition.

ARTICLE X – NEGOTIATION PROCEDURES

10.01 Negotiations for a new Agreement covering salaries, fringe benefits and working conditions may be initiated by either party. A written notice shall be directed to the Local Union President or Executive Director, Human Resources, at least ninety (90) days prior to contract expiration. Meetings between the Union and the Executive Officer shall, unless otherwise agreed upon, be scheduled outside the regular work day.

10.02 Within five (5) work days from the receipt of said written notice by the parties, every effort will be made to schedule the first meeting.

10.03 Both parties shall make every effort to conclude negotiations satisfactorily through the foregoing steps within ninety (90) days from the time of receipt of the original written notice referred to in Section 10.01.

10.04 During the process of negotiations, only such information as is mutually agreed upon in writing shall be distributed or given to the news media.

ARTICLE XI – AGREEMENT

11.01 When the parties reach tentative agreement on a proposal, such agreement shall be reduced to writing and signed by representatives of the committees. Within fifteen (15) work days after overall tentative agreement is reached, the Union shall submit the tentative Agreement for ratification. If the tentative Agreement is ratified, then, upon written certification by the Local Union President of such ratification to the Executive Director, Human Resources, the Board shall consider adoption of the Tentative Agreement at its next meeting. The Board may also elect to defer consideration of the Tentative Agreement to the following meeting when seventy-two (72) hours have not passed between written notification of Union ratification and the next Board meeting.

ARTICLE XII – ALTERNATE DISPUTE RESOLUTION

12.01 Should the Union and the Employer be unable to reach an agreement within sixty (60) days after receipt of the written notice referred to in Article X, Section 10.01 (unless the parties mutually agree to an extension of time), either party may request in writing that the unresolved matter(s) be submitted to mediation.

12.02 The mediator shall be selected by the Federal Mediation and Conciliation Service ("FMCS") from among those mediators at its nearest office. If FMCS is unable to provide a mediator, the parties shall mutually agree to utilize a neutral third-party mediator. The costs of mediation shall be shared equally by the parties. If the parties fail to agree upon a mediator within thirty (30) days of declaring impasse, then the parties shall abide by the dispute resolution procedure established by SERB. Each party shall submit only issues the respective negotiations team believes are of major significance, to mediation. All other pending proposals shall be withdrawn by the parties. In the event mediation is requested by either party, both parties shall make every effort to seek settlement under the direction of the mediator within thirty (30) days, after submission of the written request for mediation, or any additional period of time mutually agreed upon by the parties.

ARTICLE XIII – WAIVERS

13.01 The parties hereto acknowledge that during the negotiations which resulted in this Agreement, each had the unlimited right and opportunity to make demands and proposals with respect to all proper subjects of collective bargaining; and all such subjects have been discussed and negotiated upon; and the agreements contained in this Agreement were arrived at after the free exercise of such rights and opportunities. Therefore, the Employer and the Union, for the life of this Agreement, each voluntarily and unqualifiedly waives the right, and each agrees that the other shall not be obligated, to reopen collective bargaining except as provided by any reopener provision in this Agreement. However, this does not waive the right of the Union to receive notice and an opportunity to bargain over any proposed changes in terms and conditions of employment not covered by this Agreement.

13.02 The Union, as the representative of these employees, hereby waives on their behalf: (l) any right they might otherwise have to receive written contracts of employment pursuant to O.R.C., Section 3319.02; and (2) any other rights under O.R.C., Section 3319.02 or any other provisions of law extended to "other administrators."

ARTICLE XIV – NO STRIKE/NO LOCKOUT

14.01 The Union agrees that there shall be no strikes as defined in Ohio Revised Code Section 4117.01 during the term of this Agreement, during the entire period of any negotiations which extend beyond the term of this Agreement, but which precede impasse resolution procedures, and during the impasse resolution proceedings. The Union shall not give its ten (10) day strike notice until at least ten (10) work days after the first mediation session.

14.02 The Union agrees that it will not authorize, ratify, condone or encourage any of the above-proscribed activities, and that, in the event any such activities occur, the union and its officers, agents and representatives will make every effort through affirmative action to end such activity.

14.03 There shall be no lockout by the Employer during the time period of Section 14.01 of this article.

ARTICLE XV – DURATION

15.01 This Agreement shall become effective July 1, 2025 and shall continue in full force and effect until June 30, 2028 inclusive; and thereafter it shall be considered automatically renewed for a successive period of twelve (12) months unless, at least ninety (90) days prior to the termination date or the end of any twelve (12) month automatic renewal period, either party shall serve notice upon the other, as prescribed herein, that it desires cancellation, revision or modification of any provision or provisions of this Agreement.

15.02 IN-TERM BARGAINING

Any negotiations required under this Agreement or otherwise by law are subject to the procedures outlined in Article X of this Agreement. In the event either party invokes the provisions of Article XII in an impasse involving bargaining an issue during the term of this Agreement, the mediation procedure in Article XII, Section 12.02 shall apply to this in-term negotiations impasse except that the entire mediation process in in-term bargaining shall not extend beyond thirty (30) calendar days from the date the first impasse session is held with the Mediator.

AKRON CITY SCHOOL DISTRICT
SUMMARY OF INSURANCE SPECIFICATIONS

	Plan Benefits	
Benefits	**Network**	**Non-Network Facility Charges**
Benefit Period	January 1" through December 31•	
Dependent Age Limit	In accordance with law	
Spousal Language (Attached)	Applies to Medical & Prescription Drug	
Carryover Deductible	Does Not Apply	
Pre-Existing Condition Waiting Period (does not apply to members under the age of 19)	Does Not Apply	
Blood Pint Deductible	0 pints	
Lifetime Maximum	Unlimited	
Benefit Period Deductible - Single/ Family•	$400 / $800	$800 / $1,600
Coinsurance	90%	75%
Coinsurance Out-of-Pocket Maximum (Excluding Deductible) - Single/ Family	$1,000 / $2,000	$2,000 / $4,000
Coinsurance Out-of-Pocket Maximum Including Deductible - Single/ Family	$1,400 / $2,800	$2,800 / $5,600
Maximum Out-of-Pocket – Single / Family	$2,150 / $4,300	Unlimited/Unlimited
Physician/Office Services		
Office Visit (Illness/Injury)'	$30 co-pay, then 90%	$30 co-pay, then 75% after deductible
Specialist Office Visit'	$40 co-pay, then 90%	$40 co-pay, then 75% after deductible
Urgent Care Office Visit[2]	$30 co-pay, then 90%	$30 co-pay, then 75% after deductible
Immunizations	100% after deductible (ALL Immunizations)	75% after deductible
Preventative Services		
Preventive Services, in accordance with state and federal law'	100%	75% after deductible
Routine Physical Exam (Age 21 and older) (One exam per benefit period)'	100%	75% after deductible

Well Child Care Services including Exam, Routine Vision, and Routine Hearing Exams	100%	75% after deductible
Well Child Care Immunizations (Birth to age 21)	100%	75% after deductible
Well Child Care Laboratory Tests (Birth to age 21)	100%	75% after deductible
Routine X-Rays (Birth to age 21)	100%	75% after deductible
Routine Mammogram (One per benefit period)	100%	75% after deductible
Routine Pap Test (One per benefit period)	100%	75% after deductible
Routine Endoscopic Services (Ages 50 and over)	100%	75% after deductible
Routine Chest X-ray, Complete Blood Count, Comprehensive Metabolic Panel, EKG, Urinalysis (One each per benefit period)	100%	75% after deductible
Routine PSA Test (One each per benefit period)	100%	75% after deductible
Outpatient Services		
Surgical Services	90% after deductible	75% after deductible
Diagnostic Services	90% after deductible	75% after deductible
Physical Therapy & Occupational Therapy - Facility and Professional	90% after deductible	75% after deductible
	(60 visits combined per benefit period)	
Chiropractic Therapy - Professional Only	90% after deductible	75% after deductible
	(12 visits per benefit period)	
Speech Therapy – Facility and Professional	90% after deductible	75% after deductible
	(20 visits per benefit period)	
Cardiac Rehabilitation	90% after deductible	75% after deductible
Emergency use of an Emergency Room	$50 co-pay, then 90%	$50 co-pay, then 75%
Non-Emergency use of an Emergency Room' (if not admitted)	$250 co-pay, then 90%	$250 co-pay, then 75%
Inpatient Facility		
Semi-Private Room and Board	90% after deductible	75% after deductible
Maternity	90% after deductible	75% after deductible
Skilled Nursing Facility	90% after deductible	75% after deductible
	(180 days per benefit period)	

Organ Transplants	90% after deductible	75% after deductible
Additional Services		
Allergy Testing and Treatments	90% after deductible	75% after deductible
Ambulance	90% after deductible	75% after deductible
Durable Medical Equipment	90% after deductible	75% after deductible
Home Healthcare	90% after deductible	75% after deductible
	(180 visits per benefit period)	
Hospice	90% after deductible	75% after deductible
Private Duty Nursing	90% after deductible	75% after deductible
Mental Health and Substance Abuse - Federal Mental Health Parity		
Inpatient Mental Health and Substance Abuse Services	Benefits paid are based on corresponding medical benefits	
Outpatient Mental Health and Substance Abuse Services		
Prescription Drug (See 9.02(B) above)		
Step Therapy, Preferred Specialty Management, and Prior Authorization with additions shall be in effect.		

Services requiring a copayment are not subject to the single/family deductible.

Deductible expenses incurred for services by a non-network provider will also apply to the network deductible out-of-pocket limits. Deductible expenses incurred for services by a network provider will also apply to the non-network deductible and coinsurance out-of-pocket limits.

Non-Contracting and Facility Other Providers will pay the same as Non-Network.

This document is only a partial listing of benefits. This is not a contract of insurance. No person may agree, orally or in writing, to change the benefits listed here. The contract or certificate will contain the complete listing of covered services.

Maximum family deductible. Member deductible is the same as single deductible.

>The office visit co-pay applies to the cost of the office visit only.

>Preventive services include evidence-based services that have a rating of "A" or "B" in the United States Preventive Services Task Force, routine immunizations and other screenings, as provided for in the Patient Protection and Affordable Act.

Co-pay waived if admitted. The copay applies to room charges only. All other covered charges are not subject to deductible.

Co-pay waived if admitted. The copay applies to room charges only. All other covered charges are subject to deductible and coinsurance.

Department of Human Resources
Salary Schedule
FOREMEN
Effective July 1, 2025
3.0% Increase

JC 219 - PRINT SHOP FOREMAN	JC 357 - HARDWARE FOREMAN
JC 266 - TRANSPORTATION FOREMAN	JC 358 - ELECTRICIAN FOREMAN
JC 276 - GROUNDS FOREMAN	JC 359 - HVAC FOREMAN
JC 355 - A-V REPAIR FOREMAN	JC 362 - PAINTER FOREMAN
JC 356 - CARPENTER FOREMAN	JC 364 - PLUMBER FOREMAN
	FM10

STEP	ANNUAL	BIWEEKLY	DAILY	HOURLY
0	$69,745.97	$2,672.26	$267.2259	$33.4033
1	$72,570.73	$2,780.49	$278.0488	$34.7561
2	$75,408.17	$2,889.20	$288.9202	$36.1150
3	$78,266.22	$2,998.71	$299.8706	$37.4839
4*	$79,831.54	$3,058.68	$305.8680	$38.2335

* 2% increment above Step

LONGEVITY:

Based on a maximum salary of:	$79,831.54
After 16 years - 10% of maximum for employee's job code =	$7,983.15
After 20 years - 11% of maximum for employee's job code =	$8,781.47
After 24 years - 12% of maximum for employee's job code =	$9,579.78
After 27 years - 13% of maximum for employee's job code =	$10,378.10
After 30 years - 14% of maximum for employee's job code =	$11,176.42

Days in Time Schedule 522 = 261

Department of Human Resources
Salary Schedule
FOREMEN
Effective July 1, 2026
2.0% Increase

JC 219 - PRINT SHOP FOREMAN	JC 357 - HARDWARE FOREMAN
JC 266 - TRANSPORTATION FOREMAN	JC 358 - ELECTRICIAN FOREMAN
JC 276 - GROUNDS FOREMAN	JC 359 - HVAC FOREMAN
JC 355 - A-V REPAIR FOREMAN	JC 362 - PAINTER FOREMAN
JC 356 - CARPENTER FOREMAN	JC 364 - PLUMBER FOREMAN
	FM10

STEP	ANNUAL	BIWEEKLY	DAILY	HOURLY
0	$71,140.89	$2,725.70	$272.5705	$34.0713
1	$74,022.14	$2,836.10	$283.6097	$35.4513
2	$76,916.33	$2,946.99	$294.6986	$36.8374
3	$79,831.54	$3,058.68	$305.8680	$38.2335
4*	$81,428.17	$3,119.85	$311.9853	$38.9981

* 2% increment above Step

LONGEVITY:

Based on a maximum salary of:	$81,428.17
After 16 years - 10% of maximum for employee's job code =	$8,142.82
After 20 years - 11% of maximum for employee's job code =	$8,957.10
After 24 years - 12% of maximum for employee's job code =	$9,771.38
After 27 years - 13% of maximum for employee's job code =	$10,585.66
After 30 years - 14% of maximum for employee's job code =	$11,399.94

Days in Time Schedule 522 = 261

Akron Public Schools

Department of Human Resources
Salary Schedule
FOREMEN
Effective July 1, 2027
3.0% Increase

JC 219 - PRINT SHOP FOREMAN	JC 357 - HARDWARE FOREMAN
JC 266 - TRANSPORTATION FOREMAN	JC 358 - ELECTRICIAN FOREMAN
JC 276 - GROUNDS FOREMAN	JC 359 - HVAC FOREMAN
JC 355 - A-V REPAIR FOREMAN	JC 362 - PAINTER FOREMAN
JC 356 - CARPENTER FOREMAN	JC 364 - PLUMBER FOREMAN
	FM10

STEP	ANNUAL	BIWEEKLY	DAILY	HOURLY
0	$73,275.12	$2,796.76	$279.6760	$34.9595
1	$76,242.80	$2,910.03	$291.0031	$36.3754
2	$79,223.82	$3,023.81	$302.3810	$37.7976
3	$82,226.49	$3,138.42	$313.8416	$39.2303
4*	$83,871.02	$3,201.18	$320.1184	$40.0148

* 2% increment above Step

LONGEVITY:

Based on a maximum salary of:	$83,871.02
After 16 years - 10% of maximum for employee's job code =	$8,387.10
After 20 years - 11% of maximum for employee's job code =	$9,225.81
After 24 years - 12% of maximum for employee's job code =	$10,064.52
After 27 years - 13% of maximum for employee's job code =	$10,903.23
After 30 years - 14% of maximum for employee's job code =	$11,741.94

Days in Time Schedule 522 = 262

SIDE LETTER

In the event the City of Akron determines during the life of this Agreement that there is a change in the applicability of civil service provisions of the City of Akron upon the Akron City School District and the members of the bargaining unit represented by OAPSE #778, the Parties agree to meet and discuss a potential Memorandum of Understanding regarding the effects of the changes of those civil service provisions.